Court File No. T-2423-24

FEDERAL COURT

B E T W E E N:

THE CONSTRUCTION SPECIFICATIONS INSTITUTE, INC.

Plaintiff
(Defendant by Counterclaim)

- and -

BIBLIOTECH INC., JUSTE FANOU and TEMISAN FANOU, and JMF TECHNICAL DOCUMENTATION SOLUTIONS INC.

Defendants
(Plaintiffs by Counterclaim)

REPLY AND DEFENCE TO COUNTERCLAIM

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1. The Plaintiff / Defendant by Counterclaim, The Construction Specifications Institute, Inc. ("CSI"), repeats and relies on the allegations in the Further Amended Fresh as Amended Statement of Claim dated July 17, 2026. This Reply and Defence to Counterclaim does not limit or narrow the scope of the Further Amended Fresh as Amended Statement of Claim.

2. CSI denies each and every allegation in the Statement of Defence, except as expressly pleaded herein, and puts the Defendants / Plaintiffs by Counterclaim to the strict proof thereof.

3. CSI has no knowledge of, and does not admit, the allegations in paragraphs 5 to 7 of the Statement of Defence concerning the Defendants' businesses and activities as described. CSI denies the allegations and characterizations in paragraphs 8 to 12, except to the extent expressly admitted in this Defence to Counterclaim. All references to paragraph numbers are references to the Statement of Defence.

The Defendants' Alleged Use of MasterFormat and UniFormat Work

4. CSI specifically denies that the MasterFormat Work and UniFormat Work are "…necessarily part of the language in which JMF and its clients communicate with one another" as alleged in paragraph 7 of the Statement of Defence.

5. CSI also specifically denies that the MasterFormat Work is "essential to operate in the construction industry" as alleged in paragraph 11 of the Statement of Defence.

6. With respect to paragraph 13 of the Statement of Defence, CSI accepts the admission that the MasterFormat Work was first developed by the Plaintiff.

7. Regarding paragraph 15 of the Statement of Defence, CSI admits that the MasterFormat Work and UniFormat Work were developed to benefit the construction industry, however, this benefit does not take away from any legitimate intellectual property rights that CSI holds in the MasterFormat Work and UniFormat Work.

8. CSI is not claiming to originate the general concept of organizational principles, as alleged by the Defendants in paragraph 16 of the Statement of Defence. The Further Amended Fresh as Amended Statement of Claim clearly outlines the creative and original aspects of the MasterFormat and UniFormat works that are unique to CSI.

9. The MasterFormat Work simultaneously optimizes for multiple competing objectives, including, but not limited to, technical coherence, procurement workflow, contractor work results, coordination with the UniFormat Work and coordination with OmniClass among others. Arriving at a taxonomy that satisfies all of the objectives requires repeated exercises of creativity, skill and judgment. Different individuals, applying their creativity, skill and judgment to the same taxonomic endeavour could reasonably adopt a taxonomy that is different from the MasterFormat Work.

10. Similarly, the UniFormat Work simultaneously optimizes for multiple competing objectives. Arriving at a taxonomy that satisfies all of the objectives requires repeated exercises of creativity, skill and judgment. Different individuals, applying their creativity, skill and judgment to the same taxonomic endeavour, could reasonably adopt a taxonomy that is different from the UniFormat Work.

US Litigation is Distinguishable to this Action and is under Appeal

11. The U.S. decisions referenced in paragraphs 21-25 of the Statement of Defence, have no precedential binding authority in the Federal Court. The Supreme Court of Canada has recognized in several instances the important differences both in wording and in policy between Canadian and American copyright legislation, and warned that “United States court decisions,

even where the factual situations are similar, must be scrutinized very carefully".[1] In many situations, the differences in statutory language between the provisions of American legislation and of the Canadian *Copyright Act* may render the U.S. decisions of no assistance in the interpretation of Canadian copyright law. Moreover, there is conflicting caselaw in the U.S. on these issues and there is a lack of Canadian precedent on the copyright in a taxonomy.

12. Contrary to the allegations in paragraphs 21 to 25 of the Statement of Defence, this action is distinguishable from the U.S. actions referenced by the Defendants, and nonetheless the determination of this action should be based solely on Canadian legislation and policy.

13. Further, the *Zerodocs* decision referenced in paragraph 25 of the Statement of Defence is presently under appeal.

CSI's Copyright Claims

14. CSI specifically denies any alleged "failed effort" to claim copyright in the MasterFormat Work as characterized by the Defendants, and also denies that CSI pivoted in its allegations that the Defendants infringed CSI's trademarks and copyright in the MasterFormat Work.

15. In paragraph 22 of the Statement of Defence, the Defendants mischaracterize the November 2025 decision of the Federal Court. The Federal Court never found that the Plaintiff asserted copyright in a system and did not strike the claim on that basis.

16. The Further Amended Fresh as Amended Statement of Claim specifies that the MasterFormat Work is the 600+ page document and was reproduced in Schedule "A" as ordered by the Court so to avoid any ambiguity as to the identity of the MasterFormat Work in this action. This MasterFormat Work was previously produced as part of a response to a demand for particulars. As outlined in the Further Amended Fresh as Amended Statement of Claim, the MasterFormat Work and UniFormat Work were first created by CSI in 1978 and 1992, respectively, and have evolved through successive iterations and ongoing development by CSI over the ensuing decades.

[1] See *Rogers Communications Inc. v. Society of Composers, Authors and Music Publishers of Canada*, 2012 SCC 35; *Compo Co. v. Blue Crest Music Inc.*, 1979 CanLII 6 (SCC), [1980] 1 S.C.R. 357

17. Contrary to paragraphs 27 and 28, the Defendants have reproduced the MasterFormat Work and UniFormat Work, or a substantial portion thereof, without authorization of CSI, in a way that amounts to more than merely a "reference" of alphanumeric codes. CSI does not know the full extent of that reproduction, the damages that CSI has suffered or the profits the Defendants have unlawfully earned and will be particularized after discovery.

No Defence of Fair Dealing

18. CSI specifically denies that the Defendants have a defence of fair dealing for the purpose of "research and private study". The Defendants' unauthorized use of CSI's MasterFormat Work and UniFormat Work do not satisfy the test for fair dealing in that the alleged "research and private study" for the Defendants' customers is not an allowable purpose, and the dealing was not fair, given the substantial taking of the works that were reproduced to the financial benefit of the Defendants.

19. The purpose of the Defendants' dealing is to simply avoid purchasing a license from CSI to use the MasterFormat Work and UniFormat Work. Further, the number of copies of the MasterFormat Work and UniFormat Work produced, reproduced and distributed by the Defendants are only known by the Defendants. CSI does not know the full extent of that production, reproduction and distribution, the damages that CSI has suffered or the profits the Defendants have unlawfully earned will be particularized after discovery.

Alleged Copyright Misuse

20. CSI accepts the Defendants' admission that CSI has copyright in the MasterFormat Work and UniFormat Work, as admitted by the Defendants in paragraph 39 of the Statement of Defence, and denies the balance of the paragraph.

21. CSI specifically denies that it has "misused copyright" in an alleged "effort to secure an exclusive right or monopoly" as alleged in paragraph 39 of the Statement of Defence. The MasterFormat Work and UniFormat Work do not constitute the entirety of construction specification systems, and there are several varieties of construction specification systems that can be used as alternatives to MasterFormat and UniFormat. It is common for similar construction classification systems to be licensed to end-users, for example, ASTM E1557-09

Standard Classification for Building Elements and Related Sitework - UNIFORMAT II and the DIN German National Standards (Germany) which includes construction classification system licensed to end-users.

22. Paragraph 39 of the Statement of Defence contains bare allegations without any material facts pleaded in support, and fails to identify or describe the public policy referenced in the paragraph. CSI reserves its right to bring a motion to strike this portion from the Statement of Defence after the delivery of this Reply and Defence to Counterclaim.

Trademark Infringement

23. CSI specifically denies that the use of the MASTERFORMAT, UNIFORMAT and CSI trademarks are use in an "honest manner" by the Defendants. Honest use, which is denied, is not a valid defence to trademark infringement.

DEFENCE TO COUNTERCLAIM

24. CSI denies each and every allegation in the Counterclaim dated September 11, 2026, and puts the Defendants / Plaintiffs by Counterclaim to the strict proof thereof.

25. CSI denies that the Defendants / Plaintiffs by Counterclaim are entitled to any of the relief sought in paragraph 43 of the Counterclaim.

26. CSI repeats and relies on the allegations in the Further Amended Fresh as Amended Statement of Claim and the within Reply.

27. CSI specifically denies that it has engaged in any abuse of process of this Honourable Court. The Defendants / Plaintiffs by Counterclaim allegations in the Counterclaim that the "Claim is an abuse of process" in a bald statement that is unsupported by any material facts or particulars.

28. The Counterclaim fails to disclose a reasonable cause of action, and/or is frivolous, vexatious and/or an abuse of process.

29. CSI respectfully requests that the Counterclaim be dismissed, and that CSI is awarded costs on a full indemnity basis in defending this Counterclaim.

October 13, 2026.



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Defendant by Counterclaim

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